Congressional Budget Office
Cost Estimate

September 22, 2025

S. 428, SAFE Orbit Act

As ordered reported by the Senate Committee on Commerce, Science, and Transportation on March 12, 2025

By Fiscal Year, Millions of Dollars	2025	2025-2030	2025-2035
Direct Spending (Outlays)	0	a	a
Revenues	0	a	a
Increase or Decrease (-) in the Deficit	0	a	a
Spending Subject to Appropriation (Outlays)	0	255	not estimated

Increases *net direct spending* in any of the four consecutive 10-year periods beginning in 2036?	a	Statutory pay-as-you-go procedures apply?	Yes
		Mandate Effects	
Increases *on-budget deficits* in any of the four consecutive 10-year periods beginning in 2036?	a	Contains intergovernmental mandate?	Yes, Cannot Determine Costs
		Contains private-sector mandate?	Yes, Cannot Determine Costs

a. CBO has no basis on which to estimate any effects on direct spending or revenues.

S. 428 would direct the Department of Commerce to acquire and disseminate data on space activities and would grant legal immunity to federal and nonfederal entities that gather or provide such information. The bill would rename the Office of Space Commerce (now within the National Oceanic and Atmospheric Administration) as the Bureau of Space Commerce and would require the new bureau to report directly to the Office of the Secretary. The Department of Commerce would be required to plan for and report to the Congress on that transition.

CBO expects that under S. 428, the bureau would acquire and disseminate data on space objects through its Traffic Coordination System for Space, which currently is under development. The bill also would require the bureau to publish an unclassified database of information on space objects and their behavior and provide satellite operators with services that track and monitor objects in space.

See also
CBO's Cost Estimates Explained, *CBO Describes Its Cost-Estimating Process*, *Glossary*

In CBO's estimation, the bill would authorize spending subject to appropriation associated with the costs of the data acquisition, dissemination, and reporting requirements. Those amounts, shown in Table 1, fall within budget function 370 (commerce and housing credit).

CBO would consider the cash flows of nonfederal entities acting on behalf of the federal government to be direct spending and revenues; therefore, enacting S. 428 would affect those components of the federal budget. However, CBO has no basis on which to determine the magnitude or direction of those cash flows.

Table 1.
Estimated Increases in Spending Subject to Appropriation Under S. 428

	By Fiscal Year, Millions of Dollars						
	2025	2026	2027	2028	2029	2030	2025-2030
Estimated Authorization	0	55	57	59	60	62	293
Estimated Outlays	0	33	46	56	59	61	255

Spending Subject to Appropriation

Lawmakers appropriated $65 million in 2024 and in 2025 for the Office of Space Commerce. Using information from the department, CBO estimates that about $55 million was dedicated each year to developing the Traffic Coordination System for Space.

Assuming that a similar amount would be provided in 2026, and adjusting for anticipated inflation, CBO estimates that it would cost $255 million over the 2026-2030 period to continue to develop and maintain that system. Any related spending would be subject to the availability of appropriated funds.

Direct Spending and Revenues

Under S. 428, entities acting on behalf of the United States would be immune from any legal action arising from providing or receiving information about or services that facilitate space situational awareness. By providing immunity, the bill would authorize nonfederal entities to use the sovereign powers of the federal government to pursue an activity that is governmental in purpose. Given those criteria, CBO would consider the cash flows of nonfederal entities to be federal cash flows and would classify them in the budget as direct spending or revenues.[1]

Because the Traffic Coordination System for Space is not fully operational, CBO cannot determine which nonfederal entities, if any, would act for the federal government under the bill. As a result, CBO cannot determine the magnitude or direction of related cash flows or their effect on the federal budget.

1. See Congressional Budget Office *How CBO Determines Whether to Classify an Activity as Governmental When Estimating Its Budgetary Effects* (June 2017), www.cbo.gov/publication/52803.

Mandates

S. 428 contains an intergovernmental and private-sector mandate as defined in the Unfunded Mandates Reform Act (UMRA). The bill would grant the federal government (including employees and contractors) immunity from any lawsuit related to gathering or providing information or services regarding objects and activities in space. That provision of the bill would eliminate an existing right of action for any public or private entity that would otherwise seek redress or to recover damages from the federal government for providing those services.

CBO has no basis on which to estimate the number of lawsuits that would be precluded by the bill and cannot predict amounts that would be forgone in damages potentially collected under those actions. Therefore, CBO cannot determine whether the cost of the mandate would exceed the thresholds established in UMRA for intergovernmental and private-sector mandates ($103 million and $206 million in 2025, respectively, adjusted annually for inflation).

The CBO staff contacts for this estimate are David Hughes (for federal costs) and Grace Watson (formerly of CBO, for mandates). The estimate was reviewed by Christina Hawley Anthony, Deputy Director of Budget Analysis.

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